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CASE #	CASE NAME	HEARING NAME
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTION TO COMPEL ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTION TO COMPEL ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTION TO COMPEL ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS

Tentative Ruling:

The Motions are DENIED as untimely.

Unless notice of the motion to compel furthers is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed to in writing, the propounding party waives any right to compel a further response. (CCP §§ 2031.310 & 2031.310(c)) The failure to comply with the discovery deadline is jurisdictional in that it renders the court without authority to rule on motions to compel other than to deny them. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) Here, Defendants served their responses electronically on 4/8/2026. Accordingly, the deadline for any motions to compel furthers was 5/27/26. The motions at issue today were not filed until 6/4/26. They are untimely. No evidence has been presented showing that Defendants agreed in writing to extend the filing cut-off date.

No sanctions are awarded, as Defendants did not respond timely to Plaintiff's meet and confer efforts, and because Defendants agreed to supplement by 5/29/26—*after* the current cut-off date.